

		Among the records required to be maintained under Section 17701.13, subd. (d) are: "(4) Copies of the limited liability company's federal, state, and local income tax or information returns and reports, if any, for the six most recent fiscal years. . . . "(6) Copies of the financial statement of the limited liability company, if any, for the six most recent fiscal years. "(7) The books and records of the limited liability company as they relate to the internal affairs of the limited liability company for at least the current and past four fiscal years." Regarding a transferee's rights to receive distributions, Section 17705.02, subd. (b) provides: "(b) A transferee has the right to receive, in accordance with the transfer, distributions to which the transferor would otherwise be entitled; provided, however, that the pledge or granting of a security interest, lien, or other encumbrance in or against any or all of the transferable interest of a transferor shall not cause the transferor to cease to be a member or grant to the transferee or to anyone else the power to exercise any rights or powers of a member, including, without limitation, the right to receive distributions to which the member is entitled." However, plaintiff does not specifically allege violations of Section 17704.10 or 17705.02; indeed, these code sections are not mentioned in the complaint. Accordingly, the demurrer to the 25 causes of action is SUSTAINED, with leave to amend. Defendants shall give notice.
2	Ignatius vs. Shune	Pro per plaintiff Christina M. Ignatius's unopposed Motion to Modify Subpoenas ("Motion") is DENIED. The Motion requests a modification of depositions subpoenas to 1) Planned Parenthood; 2) United Medical Imaging Healthcare; and 3) United Medical Imaging Healthcare. None of those subpoenas were presented to the court. As such, the court is unable to ascertain what the subpoenas request and whether a modification is appropriate. The Motion was not properly served on any of the allegedly subpoenaed entities. The proof of service of the Motion indicates it was electronically served on the entities; however they are not

		parties to this action and there is no evidence they have agreed to accept service of pleadings electronically. Personal service is required. (CA ST CIVIL RULES Rule 3.1346; Civ. Proc. Code § 2020.220.) There is no evidence Plaintiff met and conferred with counsel for defendant Hong Shune, M.D. ("Shune") regarding the modifications prior to filing the Motion. For the above reasons the Motion is denied without prejudice to meeting and conferring with defense counsel, re-filing the motion with proper exhibits, and properly serving all interested parties/entities. The court also notes Plaintiff, who is apparently an attorney, requests monetary sanctions on the Motion. An attorney who represents themselves propria persona cannot recover their attorney fees, including as sanctions. (<i>Trope v. Katz</i> (1995) 11 Cal. 4th 274, 292; <i>Musaelian v. Adams</i> (2009) 45 Cal. 4th 512, 520.) Plaintiff is ordered to give notice.
3	Smith vs. Kia America, Inc.	Defendant Kia America, Inc.'s ("Defendant") Motion for Terminating Sanctions ("Motion") against plaintiff Wayne D. Smith ("Plaintiff") is GRANTED. After Plaintiff failed to appear at multiple properly noticed deposition dates, the court ordered Plaintiff to appear for deposition no later than 6/04/26 and imposed a \$2,000 monetary sanction. (ROA 136.) Despite Defendant's best efforts and multiple additional attempts to depose Plaintiff, Plaintiff failed and/or refused to appear for the court ordered deposition. Defendant requests terminating sanctions, or in the alternative, issue and evidentiary sanctions, as well as additional monetary sanctions against Plaintiff and his counsel of record. Although discovery sanctions are typically meted out sparingly or in an incremental approach (<i>Dep't of Forestry & Fire Prot. v. Howell</i> (2017) 18 Cal. App. 5th 154, 191-92), the court has considered the totality of the circumstances in this instance and finds the actions of Plaintiff appear to be willful, to the detriment of Defendant, and that multiple informal attempts to resolve the issues were not successful due to Plaintiff's failure and/or refusal to participate. (<i>Los Defensores, Inc. v. Gomez</i> (2014) 223 Cal. App. 4th 377, 390.) Moreover, prior monetary sanctions did not dissuade Plaintiff from additional discovery abuses. And issue and evidentiary sections are appropriate where the discovery violated goes to a particular issue in the case. But here, Plaintiff's deposition is an essential discovery device that goes to all issues. Thus, the court finds the request for terminating sanctions to be appropriate here. Plaintiff's counsel requests a brief continuance of this motion for compliance, suggesting that the difficulty in obtaining Plaintiff's deposition has been merely technical.